

PR-25-001101 IN THE MATTER OF EOFF, MATHEW – Petitioner's Motion for Sanctions Against Respondent's Counsel Cyril L. Lawrence and Cyril Lawrence, Inc. – DENIED.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: The Court does not condone the submission of inaccurate legal authority. Attorneys have an obligation to independently verify citations before submitting a filing. However, former counsel Cyril L. Lawrence filed a Notice of Error acknowledging that the quotation attributed to Estate of Lingenfelter cited in a prior filing did not appear in the opinion. He admitted that the misattribution was the result of an AI research tool, and he corrected the error shortly after it was brought to his attention. The Court finds that this isolated corrected citation error does not warrant sanctions under Code of Civil Procedure section 128.7. As to Petitioner's remaining allegations, the Court finds that Petitioner has not met his burden of establishing that the challenged filings were presented for an improper purpose, that the legal contentions were objectively frivolous, or that the factual contentions lacked evidentiary support within the meaning of Code of Civil Procedure section 128.7. The motion is therefore DENIED in its entirety. No sanctions are awarded. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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The motion is therefore DENIED in its entirety.

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